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The Gazette of the Democratic Socialist Republic of Sri Lanka  
EXTRAORDINARY

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**PART 1: SECTION (1) - GENERAL**

**Government Notifications**

L.D.B. 21/78(XVI)

**THE UNIVERSITIES ACT, No. 16 OF 1978**

ORDINANCE made by the University Grants Commission under section 18 read with section 24 A of the Universities Act, No. 16 of 1978.

Secretary,  
University Grants Commission.

Colombo,  
06th December, 2017.

ORDINANCE

01. This Ordinance may be cited as the Postgraduate Institute of Indigenous Medicine Ordinance No. 05 of 2017 and shall come into operation with effect from 06th December 2017.
02. This Ordinance shall apply to the Postgraduate Institute of Indigenous Medicine (hereinafter referred to as the "Institute" established by Order made by the Minister under section 24A (1) of the Universities Act, No. 16 of 1978 (hereinafter referred to as the "Act") and published in *Gazette Extraordinary* No. 2031/38 of 2017.
03. The Institute shall be attached to the University of Colombo, Sri Lanka (hereinafter referred to as the "University").
04. Subject to the provisions of the Act, and of any appropriate Instrument and the powers, duties and functions of the University Grants Commission (hereinafter referred to as the "Commission"), the Institute shall have power to :-



- (a) admit students;
- (b) provide for postgraduate instructions, training and research in specialities of Ayurveda, Siddha and Unani systems of Medicine as may be approved by the Commission upon the recommendation of the Institute and the University.
- (c) determine with the approval of the University and the concurrence of the Commission, the postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions to be awarded in the several specialities of Ayurved, Siddha and Unani systems of Medicine or relevant specialities;
- (d) conduct with the approval of the University, postgraduate examinations for the purpose of ascertaining the persons who have acquired proficiency in the several specialities of Ayurveda, Siddha and Unani systems of Medicine or relevant specialities, and to recommend to the University of persons who have passed the examinations and satisfied such other conditions as the University may prescribe by By-laws in consultation with the Institute, are eligible for the award of postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions of the University;
- (e) co-operate, by way of exchange of teachers, students and scholars or otherwise with Universities or Institutions in Sri Lanka or abroad, having objects similar or substantially similar to those of the Institute;
- (f) recognize examinations passed and the period of learning or study pursued by persons seeking admission to, or by students of the Institute at Universities and places of learning of university level, as being equivalent to such examinations and periods of learning or study in the Institute, or such part thereof, as may be prescribed by By-law, and to withdraw such recognition at any time;
- (g) recommend to the University the creation, abolition or suspension of Professorships, Associate Professorships, Senior Lectureships, Lecturerships and other posts as may be required for the purposes of the Institute;
- (h) erect, equip, and maintain, for the purpose of the Institute, libraries, laboratories and other buildings whether for instructional, training or research purposes;
- (i) award fellowships, scholarships, medals and other prizes in consultation with the University;
- (j) make arrangements for conducting research and courses or parts of courses in places outside the University and the Institute in accordance with any By-law providing for the same;
- (k) recognize with the concurrence of the University such persons as may be approved by the Institute, as trainers and examiners of the Institute;
- (l) demand and receive fees in accordance with any Rule providing for the same; and
- (m) do all such other acts and things, whether incidental to or consequent upon the powers, duties and functions aforesaid, in order to further the objects of the Institute;

05. The Officers of the Institute shall be the following:-

- (a) the Director; and
- (b) the holder of any other post declared by the Ordinance to be a post, the holder of which, is an officer for the purpose of this paragraph.

06. (1) The first Director shall be appointed by the Commission.

(2) Every subsequent Director shall be appointed by the Commission from a panel of three persons recommended by the Board of Management of the Institute (hereinafter referred to as the "Board"). Where a member of the staff of a higher educational institution or a higher educational institute is appointed as Director, such institution or institute shall release such member of the staff so appointed to accept the post of Director:

Provided however, that no persons shall be appointed as Director of the Institute for more than two consecutive terms.

(3) A Director shall, unless he vacates the office earlier or is removed from the office under sub paragraph (4), hold the office for a period of three years reckoned from the date of his appointment or until he completes his age of retirement, whichever event; occurs earlier.

(4) A Director shall be removed from the office by the Chairman of the Commission on a vote of censure passed by not less than two-thirds of the total membership of the Board, at a special meeting convened for the purpose. The members present at such special meeting shall elect from among themselves a person, other than the Director, to preside at such special meeting.

(5) A Director who resigns or is removed from the office or completes his tenure may, if he was a member of the staff of a higher educational institution or of a higher educational institute immediately prior to his appointment as Director, revert to his substantive post in such higher educational institution or higher educational institute, Provided that he has not reached the age of retirement.

(6) Where the Director, by reason of leave illness, absence from Sri Lanka, or other cause is temporarily unable to perform the duties of his office, the Commission shall, within seven days of the occurrence of such inability make such arrangements as it may think fit for carrying on the duties of the office of the Director. Until such arrangements are made the Registrar of the University shall carry on the routine duties of the office.

(7) Where a vacancy occurs in the office of the Director, the Commission shall, within seven days of the occurrence of such vacancy, make such arrangements as it may think suitable for carrying on the duties of the office of the Director until a permanent appointment is made. Until such arrangements are made the Registrar of the University shall carry on the routine duties of the office.

07. (1) The Director shall be the principal executive officer and the principal academic officer of the Institute. He shall be an *ex-officio* member of the Board and an *ex-officio* member of each Board of Study. He shall be entitled to convene, be present and speak at any meeting of any other Authority or body of the Institute but shall not be entitled to vote at any such meeting unless he is a member of such other Authority or body.

(2) It shall be the duty of the Director, in accordance with such directions as may from time to time be lawfully issued to him in that behalf by the Board and each Board of Study, to ensure that the provisions of the Ordinance, the Act or any other appropriate instrument in so far as they relate to the Institute, are duly observed and effect is given to the decisions of the Board and each Board of Study, and exercise all such powers as he may deem necessary for the purpose.

(3) It shall be the duty of the Director to give effect, or to ensure that effect is given to the decisions of the Board and each Board of Study.

(4) The Director shall be the Accounting Officer of the Institute.

(5) The Director shall be responsible for the maintenance of discipline within the Institute.

08. The authorities of the Institute shall comprise of the following:-

(a) the Board;

- (b) the Boards of Study;
- (c) Speciality Boards; and
- (d) such other bodies as may be prescribed by the Ordinance to be such authorities.

09. The Board shall be the academic and executive body of the Institute, and shall consist of the following persons:-

(1) The following *ex-officio* members namely:-

- (a) the Director;
- (b) the Secretary to the Ministry of the Minister assigned the subject of Higher Education or his nominee;
- (c) the Secretary to the Ministry of the Minister assigned the subject of Indigenous Medicine or his nominee;
- (d) the Secretary to the Ministry of the Minister assigned the subject of Finance or his nominee;
- (e) the Commissioner of Ayurveda;
- (f) the Immediate Past Director of the Institute;
- (g) the Directors of the Institute of Indigenous Medicine, Colombo established under the Act and Gampaha Wickramarachchi Ayurveda Institute recognised under the Act;
- (h) the heads of Siddha Units, University of Jaffna and Eastern University established under the Act;
- (i) the Director of the Bandaranaike Memorial Ayurveda Research Institute.

(2) the following other members, namely:-

- (a) One member each from among specialist grade doctors of Ayurveda, Siddha and Unani systems of Medicine from the Department of Ayurveda elected by the Commissioner of Ayurveda.
- (b) Four members appointed by the commission from among persons who have distinguished themselves in the fields of law, administration and finance.
- (c) Two members nominated by the University Council from among the appointed members of such Council.

10. (1) The Chairman of the Board shall be the Director who shall preside at all meetings of the Board. If the Chairman is unable to preside at a meeting the members shall select any member present to preside at such meeting.

(2) Any elected or appointed member shall, unless he vacates the office earlier, hold the office for a term of three years reckoned from the date of his election or appointment, as the case may be, and shall, unless removed from the office, be eligible for re-election or re-appointment :

Provided however, that if any elected or appointed member vacates his office prior to the expiry of his term, his successor shall, unless he vacates his office earlier, hold the office for the unexpired portion of the term of the office of his predecessor:

Provided further, that each elected members shall hold the office so long as he retains the status or membership by virtue of which he was eligible for election as a member of the Board.

(3) Any elected, member of the Board may resign from his office by writing under his hand addressed to the Director.

(4) Any appointed member of the Board may resign from his office by writing under his hand addressed to the Chairman of the Commission.

(5) Any elected or appointed member of the Board, who without leave of absence fails to attend three consecutive meetings of the Board, shall be deemed to have vacated his office as a member of the Board, and the Commission shall appoint a suitable person to fill such vacancy.

(6) The members of the Board shall be paid such remuneration or allowances as the Minister shall in consultation with the Minister assigned the subject of Finance, determine.

(7) The quorum of any meeting of the Board shall be one-third of its total membership.

(8) The Board shall meet whenever necessary, so however that it meets on not less than eight occasions in each year.

(9) The Director shall whenever he thinks necessary or within one week upon the receipt by him of a written request from not less than one - third of the total membership of the Board, convene a special meeting of the Board.

11. (1) Subjects to the provisions of the Act and of any appropriate instrument, the Board shall exercise the powers and perform and discharge the duties and functions conferred or imposed on, or assigned to, the Institute by this Ordinance.

(2) Subject to the provisions of the Act and of any appropriate instrument, the Board shall have control and general direction of instruction, education, research and examinations in the Institute.

(3) Without prejudice to the generality of the powers conferred upon it by sub-paragraphs (1) and (2) the Board shall exercise, perform and discharge the following powers, duties and functions :-

- (a) to hold, control and administer the property and funds of the Institute ;
- (b) to regulate and determine all matters concerning the Institute in accordance with the provisions of the Act and of any appropriate instrument ;
- (c) to administer any funds made available to the Institute for its general administration and management and any other specific purposes;
- (d) to receive and accept with the concurrence of the Commission, bequests, donations and grants of property both movable or immovable made to the Institute ;
- (e) to evaluate the annual report and the audited accounts of the Institute and to submit such report and such accounts to the University and the Commission;
- (f) to prepare the financial estimates of the Institute and to submit such estimates to the University and the Commission;
- (g) to recommend to the University, in consultation with the relevant Board of Study, the postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions which shall be awarded in the specialities of Ayurveda, Siddha and Unani systems of Medicine, and the courses of study and training to be followed, the examinations to be passed and the other conditions to be satisfied by students who wish to qualify for such postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions ;

- (h) to recommend to the University, in consultation with the Board of Study concerned, the procedure in obtaining Board certifications in respect of a candidate's specialisation;
- (i) to draft By-laws or rules for any matter in respect of which By-laws or rules are authorised to be made and to submit such drafts to the Senate and the Council of the University for enactment:

Provided however, that no By-laws relating to courses of study and examinations shall be drafted except after consideration of reports from the Board of Study concerned;

- (j) to provide buildings, premises, furniture, equipment and other materials needed for carrying on the work of the Institute;
- (k) to recommend to the Senate of the University in consultation with the relevant Board of Study, such persons as are suitable for recognition as trainers and examiners of the Institute;
- (l) to recommend to the Commission, after consideration of reports from the relevant Board of Study and with the approval of the University -
  - (i) schemes for the re-organization of existing Boards of Study and Speciality Boards, and the establishment of new Boards of Study and Speciality Boards; and
  - (ii) the assignments of specialities of Ayurveda, Siddha and Unani systems of Medicine to the respective Boards of Study ;
- (m) to appoint such number of Standing Committees or ad hoc Committees as it may deem fit, and to specify their terms of reference; to consider the reports of such committees and to either approve such reports whether with or without modification, or to reject such reports;
- (n) to determine, in consultation with the relevant Board of Study and with the concurrence of the University, the requirements for the admission of students to courses of study;
- (o) to invest any moneys belonging to the Institute including any unapplied income, in any Security in terms of the provisions of section 20 of the Trust Ordinance or any other written law, and to invest such moneys, with the approval of the Commission in the purchase of immovable property in Sri Lanka or vary such investments or to place in fixed deposits in any bank approved by the Commission, any portion of such moneys not required for immediate expenditure; and
- (p) to exercise all other powers of the Institute, which are incidental to or consequential upon the powers of the Institute as provided for in this Ordinance or any other appropriate instrument.

(4) No resolution shall be passed by the Board in relation to any academic matter unless the appropriate Board of Study has first been given an opportunity of recording and conveying its opinion thereon to the Board:

Provided that, no resolution so passed shall be acted upon except with the concurrence of the University.

In this paragraph, "academic matter" means any matter which is subject to the control and general direction of the appropriate Board of Study.

(12) The Board shall establish Boards of Study for each of the following systems of Medicine and Specialty Boards under the relevant Boards of Study : -

- (a) Ayurveda Medicine;
- (b) Siddha Medicine; and
- (c) Unani Medicine.

13. (1) The Board of Study of Ayurveda Medicine shall consist of the following persons :-

- (a) the Director who shall be an *ex-officio* member;
- (b) two members from the branch of Ayurveda of the Institute of Indigenous Medicine, Colombo established under the Act, elected from among the Senior Professors, Professors, Associate Professors, and Senior Lecturers at the meeting chaired by the Director of the Institute;
- (c) two members from the Gampaha Wickramarachchi Ayurveda Institute recognised under the Act, elected from among the Senior Professors, Professors, Associate Professors, and Senior Lecturers at the meeting chaired by the Director of the Institute;
- (d) Senior Professor, Professor, Associate Professor, or Senior Lecturer from each Departments of study of :-
  - (i) Kaya Chikitsa;
  - (ii) Shalya Shalakya;
  - (iii) Prasutitantra Kaumarabhrithya;
  - (iv) Deshiya Chikitsa;
  - (v) Swastha Vrittha;
  - (vi) Dravya Guna Vignana;
  - (vii) Shareera Vignana;
  - (viii) Maulika Siddhanta,

In the Institute of Indigenous Medicine, Colombo established under the Act and Gampaha Wickramarachchi Ayurveda Institute recognised under the Act, nominated by the Director of the relevant Institute in that order on the recommendation of the relevant Department of Study; and

(e) one Ayurveda specialist grade doctor each from the specialist grade of the following training centres nominated by the Commissioner of Ayurveda :-

- (i) Ayurveda Teaching Hospital Colombo;
- (ii) Ayurveda Teaching Hospital Gampaha;
- (iii) Bandaranaike Memorial Ayurveda Research Institute.

(2) The Board of Study of Siddha Medicine shall consist of the following persons :-

- (a) the Director who shall be an *ex-officio* member;
- (b) two members from the Unit of Siddha Medicine, University of Jaffna established under the Act, elected from among the Senior Professors, Professors, Associate Professors, and Senior Lecturers at the meeting chaired by the Head of the unit;
- (c) two members from the Unit of Siddha Medicine, Trincomalee Campus, Eastern University established under the Act, elected from among the Senior Professors, Professors, Associate Professors, and Senior Lecturers at the meeting chaired by the Head of the unit;
- (d) Senior Professor, Professor, Associate Professor, or Senior Lecturer from each Department of :-
  - (i) Noi Naadal Chikitsai;
  - (ii) Virana Chikitsai;
  - (iii) Kuzhanthai Maruthuvam and Mahalir Maruthuram;
  - (iv) Gunapadam;
  - (v) Moola Thatthuvam,

In the Unit of Siddha Medicine, Jaffna and Trincomalee established under the Act, nominated by the Head of the Unit in that order on the recommendation of the relevant Department of Study; and

(e) One Siddha specialist grade doctor each from the specialist grade of the following training centres nominated by the Commissioner of Ayurveda :-

- (i) Siddha Teaching Hospital, Kaithady, Jaffna;
- (ii) Siddha Teaching Hospital, Trincomalee;
- (iii) Bandaranaike Memorial Ayurveda Research Institute,

(3) The Board of study of Unani Medicine shall consist of the following persons :-

- (a) the Director who shall be an *ex-officio* member;
- (b) two members from the Branch of Unani Medicine of the Institute of Indigenous Medicine, Colombo established under the Act, elected from among the Senior Professors, Professors, Associate Professors, and Senior Lecturers at the meeting chaired by the Director of the Institute;
- (c) a Senior Professor, Professor, Associate Professor, or Senior Lecturer from each Department of Study of.
  - (i) Moalijat;
  - (ii) Ilmu Jarahat;
  - (iii) Amraz -e-Niswan Va Qabalat Va Atfal;
  - (iv) Deshiya Ilaj;
  - (v) Tahaffuzi Va Samaji Tibb;
  - (vi) Ilmu Adviya;
  - (vii) Kuliyat,

In the Institute of Indigenous Medicine, Colombo established under the Act, nominated by the Director of the Institute in that order on the recommendation of the relevant Department of Study; and

(d) One Unani specialist grade doctor each from the specialist grade of the following training centres nominated by the Commissioner of Ayurveda :-

- (i) Ayurveda Teaching Hospital Colombo;
- (ii) Bandaranaike Memorial Ayurveda Research Institute.

(4) Appointment of members to the Board of Study :-

- (a) Nominees of an academic department in a Board of Study shall be selected by the respective Directors, Heads of undergraduate Institutes or Units in consultation with the academic staff members who satisfy the requirements stipulated to be a trainer and forwarded to the Director of the Institute.
- (b) Nominees from the training centre of the Ministry of Indigenous Medicine shall be selected from among specialist grade doctors who satisfy requirements stipulated to be a trainer, at a meeting chaired by the Director of the Hospital or Head of the centre. Such names shall be forwarded to the Director of the Institute by the Commissioner of Ayurveda.

(5) Any Board of Study may, with the concurrence of the Board, co-opt maximum three persons for a period of one year for a specified purpose. No person so co-opted shall have the right to stand for election or to vote at any meeting of such Board of Study.

(6) (a) Any member of a Board of Study shall, unless he vacates the office earlier, hold the office for a term of three years reckoned from the date of this election or appointment and be eligible for re-election or re-appointment :

Provided however, that if any elected or appointed member vacates his office prior to the expiry of his term, his successor shall, unless he vacates his office earlier, hold the office for the unexpired portion of the term of the office of his predecessor;

Provided further, that each elected or appointed member shall hold the office so long as he retains the status or membership by virtue of which he was eligible for election appointment as a member of the Board of Study, and shall cease to be a member on resignation, retirement or transfer from the hospital, Institute, University or Department of Study.

(b) Any member of a Board of Study may resign from his office by writing under his hand addressed to the Director.

(c) Any elected or appointed member of a Board of Study, who without leave of absence fails attend three consecutive meetings of the Board of Study, shall be deemed to have vacated his office as a member of the Board of Study and the Director shall take such action to appoint a suitable person to fill such vacancy.

(d) In instances where the designated number of members cannot be appointed to a Board of Study or a Speciality Board due to any valid reason, the Board shall have the power to appoint qualified persons to fill such vacancies in consultation with the relevant Board of Study or the Speciality Board.

(e) The Board shall have the power to dissolve a Board of Study or remove a member of a Board of Study on a vote of censure passed by not less than two - thirds of the total membership of the Board.

(7) (a) Each Board of Study shall have a Chairman who shall be elected by the members of that Board of Study from among its members.

(b) The terms of the office of the Chairman shall be the term of the office of the Board of Study.

(8) (a) Each Board of Study shall have a Secretary who shall be a member of the Board of Study appointed by the Board upon the recommendation of the appropriate Board of Study.

(b) The terms of the office of the Secretary shall be the term of the office of the Board of Study.

(9) The quorum of any meeting of any Board of Study constituted under subparagraph (1), (2) and (3) shall be one third of the membership, excluding the co-opted members, if any.

(10) Each Board of Study shall meet whenever necessary, so however that it meets on not less than ten occasions in each year.

14. (1) Subject to the provisions of the Act and of any appropriate instrument, each Board of Study shall have control and general direction of instruction, education, research and examinations in respect of the specialities of Ayurveda, Siddha and Unani systems of Medicine concerned.

(2) Without prejudice to the generality of the powers conferred upon it by sub-paragraph (1) each Board of Study shall exercise, perform and discharge the following powers, duties and functions in the specialities of Ayurveda, Siddha and Unani systems of Medicine concerned:-

(a) consider and report on any matter referred to it by the Board.

(b) present recommendations and a report to the Board on all matters connected with the courses of study training programmes or programmes and examinations in the relevant speciality;

(c) recommend the appointment of committees, which may include persons other than members of the Board of Study for the purpose of considering and reporting on any special subject or subjects related to the relevant speciality;

(d) recommend to the Board the requirements for the admission of students to courses of study and examinations;

(e) draft Regulations relating to courses of study and examinations in the relevant speciality and to submit such drafts to the Board;

(f) recommend to the Board such persons who are suitable for recognition as trainers and examiners;

- (g) recommend to the Board such persons who, having passed the prescribed examinations in the relevant speciality and having satisfied other prescribed conditions, are eligible for the award of postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions in that speciality;
  - (h) recommend to the Board the mode and conditions of competition for fellowships, scholarships, exhibitions, bursaries, medals and other prizes;
  - (i) recommend to the Board, the names of persons suitable for the award of fellowships, scholarships, exhibitions, bursaries medals and other prizes; and
  - (j) recommend to the Board-
    - (i) schemes for the reorganization of existing Boards of Study, and the organization of new Boards of Study; and
    - (ii) the assignment of specialities of Ayurveda, Siddha and Unani systems of medicine to the respective Boards of Study.
- (3) With the approval of the relevant Board of Study, the Board shall establish Speciality Board in respect of specialities and-
- (a) each Speciality Board shall function under the general directions of a relevant Board of Study established by the Board in respect of specialities of Ayurveda, Siddha, and Unani systems of Medicine;
  - (b) where a Speciality Board has been established in respect of a speciality in which instruction, education, training and evaluation are carried out under the general direction of a relevant Board of Study, such Speciality Board shall consist of ten members as follows:-
    - (i) the Director;
    - (ii) six members to be nominated by the relevant Board of Study approved by the Board of whom at least three members shall be specialist grade doctors from the relevant speciality and shall be nominated from among those who are being, or had been employed in any of the undergraduate institutes, Units of Ayurveda, Siddha or Unani systems of Medicine established under the Act or training centres of the Ministry of Indigenous Medicine;
    - (iii) three members nominated by the Board from among the specialist grade doctors in the relevant speciality;
  - (c) each Speciality Board shall have a Chairman and Secretary who shall be elected by the members of the Speciality Board from among its members and the tenure of the office shall be the tenure of the Speciality Board;
  - (d) quorum of any meeting of a Speciality Board shall be one third of the total membership excluding the co-opted members, if any;
  - (e) tenure of the office of a Speciality Board shall expire on the date of expiry of the tenure of the office of the Board of Study;
  - (f) each Speciality Board shall hold a minimum of six meetings each year;
  - (g) each Speciality Board may recommend co-opting of specialists for a specific purpose and for a specified period and no person so co-opted shall have the right to stand for election or vote at any meeting of the Speciality Board;
  - (h) in instances, where a member of a Speciality Board who is not a member of a relevant Board of Study concerned is assigned to present matters pertaining to the Speciality Board at a meeting of the relevant Board of Study such nominee shall be deemed to have been duly co-opted for that specific presentation and on completion of such presentation he ceases to be a co-opted member;
  - (i) the Board shall have the power to dissolve a Speciality Board or remove a member of a Speciality Board on a vote of censure passed by not less than two thirds of the total membership of the Board.

- (4) Subject to the provisions of the Act, Ordinance or any appropriate instrument and the general directions and control of the Board of Study each Speciality Board shall perform and discharge the following functions:-
- (a) submit recommendations and a report to the relevant Board of Study on all matters concerned with courses of study, training programmes, curricula and examinations related to the speciality;
  - (b) recommend the appointment of sub-committees, when relevant, which may include persons other than members of the Speciality Board for the purpose of considering and reporting on a special subject to the speciality, if any;
  - (c) recommend to the Board of Study the requirements for admission of trainees to courses of study, training programmes and examinations;
  - (d) submit to the Board of Study draft regulations relating to courses of study and examinations;
  - (e) recommend to the Board of Study such persons who are suitable for recognition as trainers and examiners in conformity with the general rules and regulations governing such functions; and
  - (f) shall report on matters being referred to the Speciality Board by the Board of Study concerned or the Board.
15. The financial year of the Institute shall be the same as the financial year of the Government.
16. (1) The institute shall have a fund to be called the Postgraduate Institute of Indigenous Medicine Fund (hereinafter referred to as the "Fund"), into which shall be paid-
- (a) fees to be paid to the Institute in accordance with the provisions of any appropriate instrument;
  - (b) income from endowments;
  - (c) moneys provided by the Parliament and disbursed by the Commission as grants in aid of the Institute;
  - (d) all other moneys belonging to the Institute from whatever source derived.
- (2) A summary of all sums of money paid to the Fund within the course of a particular month, classified under the appropriate heads of revenue, shall before the end of the next ensuing month be submitted by the Director to the Commission for its information.
17. It shall be the duty of the Director-
- (a) to keep the accounts of the Institute in such form and manner as may be prescribed by Ordinance;
  - (b) to receive all moneys paid into the Fund and to credit such moneys to the proper heads of accounts;
  - (c) to make all authorized payments;
  - (d) to prepare for the Board such triennial estimates as are required by the Commission and the annual financial appropriations for the ensuing year:

Provided however, that income derived from grants made for specific purposes or from endowments for specific objects, shall be separately accounted for in the accounts of the Institute, and that no payment shall be made from such income for the general purposes of the Institute or for any purpose or object other than for which such grants or endowments were respectively made.

18. (1) The Institute shall prepare an annual statement of accounts, and statistics relating to its activities in such form and manner and containing such particulars as the Commission may from time to time specify.
- (2) The books of accounts of the Institute shall be in the office of the Institute.
19. Such provisions of Part XIII of the Act as are relevant to the auditing of the accounts of a higher educational institution shall, *mutatis mutandis*, apply to and in relation to the auditing of the accounts of the Institute.

20. (1) The staff of the Institute shall consist of such officers and other employees as it may with the concurrence of the University and the approval of the Commission deem necessary for the efficient exercise, discharge and performance of the powers, duties and functions of the Institute.

(2) The staff of the Institute shall be provided on release by the University from among its own staff or be appointed by the Commission or the University, as the case may be. The provisions of part X of the Act shall, *mutatis mutandis*, apply to and in relation to appointment to the staff of the Institute.

(3) Where the services of an officer or other employee of the University have been provided to the Institute on a full-time basis, the Institute shall pay him the salary and the allowances of his substantive post in the University. In any other case, the Institute may pay the officer or other employee concerned, such allowance as it may determine in consultation with the University and with the approval of the Commission.

(4) The staff of the Institute shall be subject to the direction and the disciplinary control of the Director.

21. If any question arises as to whether any person has been duly elected, appointed, nominated or co-opted or as to whether any person is entitled to be, a member of any Authority or other body of the Institute, such question shall be referred to the Commission in the event the Board is unable to resolve the question raised whose decision thereof shall be final.

22. No act, resolution or proceeding of any Authority or other body of the Institute, shall be invalidated merely by reason of the existence of a vacancy or of vacancies among its members or of any defects in the appointment of such member.

23. Upon the coming into operation of this Ordinance, the power to grant and to confer postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions in the specialities of Ayurveda Siddha and Unani systems of Medicine shall be vested solely in the University of Colombo, Sri Lanka.

Provided however,-

(1) that the University of Colombo, Sri Lanka, shall grant and confer such postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions only upon the recommendation of the Institute.

(2) that any University established or deemed to be established under the Act, may grant and confer such postgraduate degrees, postgraduate diplomas, postgraduate certificates and other academic distinctions in any specialities, of Ayurveda, Siddha and Unani systems of Medicine in respect of which no Board of Study has been established by the Institute under the provisions of paragraph 13.

(3) that any University established or deemed to be established under the Act, may grant and confer postgraduate degrees based wholly or partly upon research in any speciality of Ayurveda, Siddha and Unani systems of Medicine, whether or not a Board of Study in respect of such speciality has been established by the Institute under the provisions of paragraph 13; and

(4) that academic distinctions in the specialities of Ayurveda, Siddha and Unani systems of Medicine may be granted by professional bodies by arrangement with the Institute and the University of Colombo, Sri Lanka, and with the concurrence of the Commission.

24. In this Ordinance-

"Act" means the Universities Act, No. 16 of 1978;

"appropriate instrument" means any Order, Ordinance, Statute, By-law, Regulation or Rule made in accordance with the provisions of the Act;

"Commission" means the University Grants Commission established under the Universities Act;

"Examiner" means a person having five years experience after Board Certification or equivalent qualifications or eligible for privileges of Board Certification and who shall be in active service in any University or in the Ministry of Indigenous Medicine;

"professional body" means an association, college or other body of persons in any speciality of Ayurveda, Siddha and Unani systems of Medicine either incorporated by an Act of Parliament or recognised as such by the Board;

"Trainer" mean a person having three years experience after Board Certification or equivalent qualifications or eligible for privileges of Board Certification and who shall be in active service in any University or in the Ministry of Indigenous Medicine;

"Training Centre" mean a hospital, ward or unit that provides instructions and training or instructions or training in a speciality approved by the Board and the Senate on the recommendation of the Board of Study concerned with reasonable notice but without prejudice to any existing membership of a Board of Study;

"Speciality of Ayurveda Medicine" means Kaya Chikitsa, Shalya, Shalakya, Sthree Roga and Prasutitantra, Kaumarabhrithya, Deshiya Chikitsa, Swastha Vrittha, Agadatantra, Dravya Guna Vignana, Bhaisajya Kalpana and Rasa Shastra, Shareera Vignana, and Maulika Siddhanta or any other speciality approved by the Commission upon the recommendation of the Institute and the University from time to time.

"Speciality of Siddha Medicine" means Siddha Maruthuvam, Aruvai maruthuvam, Siroroga Maruthuvam, Pen Noyiyalum, Mahapettru Maruthuvam, Kuzhanthai Maruthuvam, Paramparai Maruthuvam, Samootha Nala Maruthuvam, Nanjiyal, Gunapadam, Siddha Marunthiyal and Siddha Moola Thatthuvam or any other speciality approved by the Commission upon the recommendation of the Institute and the University from time to time.

"Speciality of Unani Medicine" means Moalijat, Ilmul Jarahat, Amraz-e-Ain Anf Uzn Va Halq, Amraze-e-Niswan Va Qabalat, Ilmul Atfal, Deshiya Ilaj, Tahaffuzi Va Samaji tibb, Ilmul Sumoon, Mufrad Advia, Dawa Sazi Va Kushta Sazi, Thasreeh-ea-Badan Va Munafe-ul-Aaza, Al Umoor al Tabaiyya or any other speciality approved by the Commission upon the recommendation of the Institute and the University from time to time.

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